



Protection of Aircraft Act 1973

1973 CHAPTER 47

An Act to give effect to the Convention for the Suppression of Unlawful Acts against the Safety of Civil Aviation, and to make other provision for the protection of aircraft, aerodromes and air navigation installations against acts of violence; to amend the Hijacking Act 1971; and for connected purposes. [25th July 1973]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

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PENALTIES FOR UNLAWFUL ACTS AGAINST SAFETY OF AIRCRAFT

1.—(1) It shall, subject to subsection (4) of this section, be an offence for any person unlawfully and intentionally—

- (a) to destroy an aircraft in service or so to damage such an aircraft as to render it incapable of flight or as to be likely to endanger its safety in flight, or
- (b) to commit on board an aircraft in flight any act of violence which is likely to endanger the safety of the aircraft.

(2) It shall also, subject to subsection (4) of this section, be an offence for any person unlawfully and intentionally to place, or cause to be placed, on an aircraft in service any device or

Destroying,
damaging or
endangering
safety of
aircraft.

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substance which is likely to destroy the aircraft, or is likely so to damage it as to render it incapable of flight or as to be likely to endanger its safety in flight; but nothing in this subsection shall be construed as limiting the circumstances in which the commission of any act—

(a) may constitute an offence under the preceding subsection, or

(b) may constitute attempting or conspiring to commit, or aiding, abetting, counselling or procuring, or being art and part in, the commission of such an offence.

(3) Except as provided by the next following subsection, subsections (1) and (2) of this section apply whether any such act as is therein mentioned is committed in the United Kingdom or elsewhere, whatever the nationality of the person committing the act and whatever the State in which the aircraft is registered.

(4) Subsections (1) and (2) of this section do not apply to any act committed in relation to an aircraft used in military, customs or police service unless—

(a) the act is committed in the United Kingdom, or

(b) where the act is committed outside the United Kingdom, the person committing it is a person to whom the next following subsection applies.

(5) This subsection applies to any person who is—

(a) a citizen of the United Kingdom and Colonies ;

1948 c. 56.

(b) a British subject by virtue of section 2 of the British Nationality Act 1948 ;

(c) a British subject without citizenship by virtue of section 13 or section 16 of that Act ;

1965 c. 34.

(d) a British subject by virtue of the British Nationality Act 1965 ; or

(e) a British protected person within the meaning of the British Nationality Act 1948.

(6) In this Part of this Act “unlawfully”—

(a) in relation to the commission of an act in the United Kingdom, means so as (apart from this Act) to constitute an offence under the law of the part of the United Kingdom in which the act is committed, and

(b) in relation to the commission of an act outside the United Kingdom, means so that the commission of the act would (apart from this Act) have been an offence under the law of England if it had been committed in England or of Scotland if it had been committed in Scotland.

(7) In this section "act of violence" means—

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- (a) any act done in the United Kingdom which constitutes the offence of murder, attempted murder, manslaughter, culpable homicide or assault or an offence under section 18, 20, 21, 22, 23, 24, 28 or 29 of the Offences against the Person Act 1861 or under section 2 of the Explosive Substances Act 1883, and

1861 c. 100.
1883 c. 3.
- (b) any act done outside the United Kingdom which, if done in the United Kingdom, would constitute such an offence as is mentioned in the preceding paragraph.

2.—(1) It shall, subject to subsections (4) and (5) of this section, be an offence for any person unlawfully and intentionally to destroy or damage any property to which this subsection applies, or to interfere with the operation of any such property, where the destruction, damage or interference is likely to endanger the safety of aircraft in flight. Other acts endangering or likely to endanger safety of aircraft.

(2) The preceding subsection applies to any property used for the provision of air navigation facilities, including any land, building or ship so used, and including any apparatus or equipment so used, whether it is on board an aircraft or elsewhere.

(3) It shall also, subject to subsections (4) and (5) of this section, be an offence for any person intentionally to communicate any information which is false, misleading or deceptive in a material particular, where the communication of the information endangers the safety of an aircraft in flight or is likely to endanger the safety of aircraft in flight.

(4) It shall be a defence for a person charged with an offence under subsection (3) of this section to prove—

- (a) that he believed, and had reasonable grounds for believing, that the information was true, or
- (b) that, when he communicated the information, he was lawfully employed to perform duties which consisted of or included the communication of information and that he communicated the information in good faith in the performance of those duties.

(5) Subsections (1) and (3) of this section do not apply to the commission of any act unless either the act is committed in the United Kingdom, or, where it is committed outside the United Kingdom,—

- (a) the person committing it is a person to whom section 1(5) of this Act applies, or
- (b) the commission of the act endangers or is likely to endanger the safety in flight of a civil aircraft registered in the United Kingdom or chartered by demise to a lessee whose principal place of business, or (if he has

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no place of business) whose permanent residence, is in the United Kingdom, or

(c) the act is committed on board a civil aircraft which is so registered or so chartered, or

(d) the act is committed on board a civil aircraft which lands in the United Kingdom with the person who committed the act still on board.

(6) Subsection (1) of this section also does not apply to any act committed outside the United Kingdom and so committed in relation to property which is situated outside the United Kingdom and is not used for the provision of air navigation facilities in connection with international air navigation, unless the person committing the act is a person to whom section 1(5) of this Act applies.

(7) In this section "civil aircraft" means any aircraft other than an aircraft used in military, customs or police service.

Inducing or assisting commission of acts excepted from ss. 1 and 2.

3.—(1) It shall be an offence for any person in the United Kingdom to induce or assist the commission outside the United Kingdom of any act which—

(a) would, but for subsection (4) of section 1 of this Act, be an offence under that section, or

(b) would, but for subsection (5) or subsection (6) of section 2 of this Act, be an offence under that section.

(2) The preceding subsection shall have effect without prejudice to the operation, in relation to any offence under section 1 or section 2 of this Act,—

(a) in England and Wales, or in Northern Ireland, of section 8 of the Accessories and Abettors Act 1861, or

(b) in Scotland, of any rule of law relating to art and part guilt.

1861 c. 94.

Penalties and proceedings.

4.—(1) Any person who commits an offence under this Part of this Act shall be liable, on conviction on indictment, to imprisonment for life.

(2) Proceedings for an offence under this Part of this Act shall not be instituted—

(a) in England and Wales, except by, or with the consent of, the Attorney General, or

(b) in Northern Ireland, except by, or with the consent of, the Attorney General for Northern Ireland ;

but the preceding provisions of this subsection shall not prevent the arrest, or the issue of a warrant for the arrest, of any person in respect of any offence, or the remanding in custody or on bail of any person charged with any offence.

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(3) As respects Scotland, for the purpose of conferring on the sheriff jurisdiction to entertain proceedings for an offence under this Part of this Act, any such offence shall, without prejudice to any jurisdiction exercisable apart from this subsection, be deemed to have been committed in any place in Scotland where the offender may for the time being be.

(4) In relation to proceedings instituted in Northern Ireland, S.I. 1972, paragraphs (3)(b), (4) and (5) of Article 7 of the Prosecution of No. 538 Offences (Northern Ireland) Order 1972 (which relate respectively to proof of consent, to describing the offence, or any property or place, to which, or a person to whom, a consent relates, and to amending a consent) shall apply as if subsection (2) of this section were a consent provision within the meaning of that Article.

5.—(1) There shall be deemed to be included—

Extradition.

(a) in the list of extradition crimes in Schedule 1 to the Extradition Act 1870, and

1870 c. 52.

(b) among the descriptions of offences set out in Schedule 1 to the Fugitive Offenders Act 1967,

1967 c. 68.

any offence under this Part of this Act and (so far as not so included by virtue of the foregoing) any attempt to commit such an offence.

(2) Where no such arrangement as is mentioned in section 2 of the Extradition Act 1870 has been made with a State which is a party to the Convention, an Order in Council applying that Act may be made under that section as if the Convention were such an arrangement with that State; but where that Act is so applied it shall have effect as if the only extradition crimes within the meaning of that Act were offences under this Part of this Act and attempts to commit such offences.

(3) For the purposes of the Extradition Act 1870 any act, wherever committed, which—

(a) is an offence under this Part of this Act, or an attempt to commit such an offence, or would be such an offence or attempt but for subsection (4) of section 1 or subsection (5) or subsection (6) of section 2 of this Act, and

(b) is an offence against the law of any State in the case of which that Act has been applied by an Order in Council under section 2 of that Act,

shall be deemed to be an offence committed within the jurisdiction of that State.

(4) In this section “the Convention” means the Convention for the Suppression of Unlawful Acts against the Safety of Civil Aviation signed at Montreal on 23rd September 1971.

6.—(1) In section 3 of the Visiting Forces Act 1952 (restriction, as respects certain offences, of trial by United Kingdom Amendments and repeal. 1952 c. 67.

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1971 c. 70.

courts of offenders connected with visiting force) the following amendments shall be made in substitution for those made by section 5(2) of the Hijacking Act 1971, that is to say, in subsection (1) of that section, at the end of paragraph (c) there shall be inserted the words " or

- (d) the alleged offence is the offence of hijacking on board a military aircraft in the service of that force or consists of inducing or assisting, in relation to such an aircraft, the commission of any such act as is mentioned in section 1(4)(b) of the Hijacking Act 1971 ; or
- (e) the alleged offence is an offence under section 1 or section 2 of the Protection of Aircraft Act 1973, or consists of inducing or assisting the commission of any such act as is mentioned in section 3(1) of that Act, where (in either case) one or more such aircraft was or were the only aircraft alleged to have been, or to have been likely to be, thereby destroyed or damaged or whose safety is alleged to have been, or to have been likely to be, thereby endangered ",

and in subsection (4) of that section, after the words " paragraphs (b) and (c) of subsection (1) of this section " there shall be inserted the words " and (except in so far as they relate to inducing or assisting the commission of any act) paragraphs (d) and (e) of that subsection " and for the words " those paragraphs ", in the second place where they occur, there shall be substituted the words " paragraphs (b) and (c) of that subsection ".

(2) Section 5 of the Hijacking Act 1971 (which restricts proceedings for offences under that Act) shall have effect with the insertion of the following subsections after subsection (1):—

" (1A) Nothing in subsection (1) of this section shall prevent the arrest, or the issue of a warrant for the arrest, of any person in respect of any offence under this Act, or the remanding in custody or on bail of any person charged with any such offence.

(1B) In relation to proceedings instituted in Northern Ireland, paragraphs (3)(b), (4) and (5) of Article 7 of the Prosecution of Offences (Northern Ireland) Order 1972 (which relate respectively to proof of consent, to describing the offence, or any property or place, to which, or a person to whom, a consent relates, and to amending a consent) shall apply as if subsection (1) of this section were a consent provision within the meaning of that Article ",

and shall be deemed to have had effect with the insertion of the first of those subsections as from the passing of the said Act of 1971 and with the insertion of the second of them as from 30th March 1972.

(3) In accordance with subsection (1) of this section, section 5(2) of the Hijacking Act 1971 is hereby repealed. PART I
1971 c. 70.

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PROTECTION OF AIRCRAFT, AERODROMES AND AIR NAVIGATION INSTALLATIONS AGAINST ACTS OF VIOLENCE

7.—(1) The purposes to which this Part of this Act applies are the protection against acts of violence— Purposes to
which Part
II applies.

- (a) of aircraft, and of persons or property on board aircraft ;
- (b) of aerodromes, and of such persons or property as (in the case of persons) are at any time present in any part of an aerodrome or (in the case of property) forms part of an aerodrome or is at any time (whether permanently or temporarily) in any part of an aerodrome ; and
- (c) of air navigation installations which do not form part of an aerodrome.

(2) In this Part of this Act “ act of violence ” means any act (whether actual or potential, and whether done or to be done in the United Kingdom or elsewhere) which either—

- (a) being an act done in Great Britain, constitutes, or
- (b) if done in Great Britain would constitute,

the offence of murder, attempted murder, manslaughter, culpable homicide or assault, or an offence under section 18, 20, 21, 22, 23, 24, 28 or 29 of the Offences against the Person Act 1861, 1861 c. 100. under section 2 of the Explosive Substances Act 1883 or under 1883 c. 3. section 1 of the Criminal Damage Act 1971 or, in Scotland, the 1971 c. 48. offence of malicious mischief.

8.—(1) The Secretary of State may, by notice in writing served on any person who is— Power for
Secretary
of State
to require
information.

- (a) the operator of one or more aircraft registered or operating in the United Kingdom, or
 - (b) the manager of an aerodrome in the United Kingdom,
- require that person to inform the Secretary of State of the measures, of a description specified in the notice, which are being taken in respect of aircraft registered or operating in the United Kingdom of which he is the operator or in respect of that aerodrome, as the case may be, for purposes to which this Part of this Act applies.

(2) A notice under subsection (1) of this section shall specify a date (not being earlier than four weeks from the date on which the notice is served) before which the information required by the notice in accordance with subsection (1) of this section is to be furnished to the Secretary of State.

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(3) Any such notice shall also require the person on whom it is served, after he has furnished to the Secretary of State the information required by the notice in accordance with subsection (1) of this section, to inform the Secretary of State if at any time—

(a) any further measures, in respect of aircraft registered or operating in the United Kingdom of which at that time he is the operator, or in respect of the aerodrome to which the information so furnished related, as the case may be, are taken for purposes to which this Part of this Act applies, either by way of alteration of, or addition to, the measures specified in any information previously furnished by him under this section or by way of applying any measures so specified to aircraft, or to a part of the aerodrome, not comprised in the previous information, or

(b) any measures taken as mentioned in that subsection or in paragraph (a) of this subsection are discontinued.

(4) In so far as such a notice requires further information to be furnished to the Secretary of State in accordance with subsection (3) of this section, it shall require that information to be furnished to him before the end of such period (not being less than seven days from the date on which the further measures in question are taken or the measures are discontinued, as the case may be) as is specified in the notice for the purposes of this subsection.

(5) A notice served on a person under subsection (1) of this section may at any time be revoked by a further notice served on him by the Secretary of State.

Power to
impose
restrictions
in relation
to aircraft.

9.—(1) For purposes to which this Part of this Act applies the Secretary of State may give a direction in writing to the operator of any one or more aircraft registered or operating in the United Kingdom, or to any person appearing to the Secretary of State to be about to become such an operator, requiring him—

(a) not to cause or permit persons or property to go or be taken on board the aircraft, or to come or be brought into proximity to the aircraft, unless such searches of those persons or that property as are specified in the direction have been carried out by constables or by other persons of a description specified in the direction, or

(b) not to cause or permit the aircraft to fly unless such searches of the aircraft as are specified in the direction have been carried out by constables or by other persons of a description so specified.

(2) Subject to the next following subsection, the Secretary of State may give a direction in writing to the operator of any one

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or more aircraft registered in the United Kingdom, or to any person appearing to the Secretary of State to be about to become such an operator, requiring him not to cause or permit the aircraft to fly unless such modifications or alterations of the aircraft, or of apparatus or equipment installed in the aircraft, as are specified in the direction have first been carried out, or such additional apparatus or equipment as is so specified is first installed in the aircraft.

(3) Before giving any direction under subsection (2) of this section the Secretary of State shall inform the Civil Aviation Authority of the modifications, alterations or additional apparatus or equipment proposed to be required, and shall take account of any advice given to him by that Authority with respect to those proposals.

(4) In giving any direction under subsection (2) of this section the Secretary of State shall allow, and shall specify in the direction, such period as appears to him to be reasonably required for carrying out the modifications or alterations or installing the additional apparatus or equipment in question; and the direction shall not take effect before the end of the period so specified.

(5) Subject to the following provisions of this Part of this Act, a direction given to an operator of aircraft under subsection (1) of this section may be given so as to relate—

- (a) either to all the aircraft registered or operating in the United Kingdom of which at the time when the direction is given or at any subsequent time he is the operator or only to one or more such aircraft, or to a class of such aircraft, specified in the direction;
- (b) either to all persons or only to one or more persons, or persons of one or more descriptions, specified in the direction; and
- (c) either to property of every description or only to particular property, or property of one or more descriptions, specified in the direction;

and a direction given to an operator of aircraft under subsection (2) of this section may be given so as to relate either to all aircraft registered in the United Kingdom of which at the time when the direction is given or at any subsequent time he is the operator or only to one or more such aircraft, or to a class of such aircraft, specified in the direction.

(6) Subject to the following provisions of this Part of this Act, any direction given under this section to an operator of aircraft not to cause or permit anything to be done shall be construed

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as requiring him to take all such steps as in any particular circumstances are practicable and necessary to prevent that thing from being done.

(7) A direction given under this section to a person, as being a person appearing to the Secretary of State to be about to become such an operator as is mentioned in subsection (1) or subsection (2) of this section, shall not take effect until he becomes such an operator; and, in relation to such a direction, subsections (5) and (6) of this section shall apply with the necessary modifications.

Power to require aerodrome managers to promote searches at aerodromes.

10.—(1) For purposes to which this Part of this Act applies the Secretary of State may give a direction in writing to the manager of any aerodrome in the United Kingdom requiring him to use his best endeavours to secure that such searches to which this section applies as are specified in the direction are carried out by constables or by other persons of a description specified in the direction.

(2) The searches to which this section applies, in relation to an aerodrome, are searches—

- (a) of the aerodrome or any part of it;
- (b) of any aircraft which at the time when the direction is given or at any subsequent time is in any part of the aerodrome; and
- (c) of persons or property (other than aircraft) which may at any such time be in any part of the aerodrome.

General power to direct measures to be taken for purposes to which Part II applies.

11.—(1) Subject to the following provisions of this section, the Secretary of State may give a direction in writing to any person who is—

- (a) the operator of one or more aircraft registered or operating in the United Kingdom, or
- (b) the manager of an aerodrome in the United Kingdom, requiring him to take, in respect of aircraft registered or operating in the United Kingdom of which he is the operator or in respect of that aerodrome, as the case may be, such measures for purposes to which this Part of this Act applies as are specified in the direction.

(2) Without prejudice to the generality of the preceding subsection, the measures to be specified in a direction given under this section to an operator of aircraft, or to the manager of an aerodrome, may include the provision by the operator or manager of persons charged with the duty (at such times as may be specified in the direction)—

- (a) of guarding the aircraft, or

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(b) of guarding the aerodrome, or persons or property (including aircraft) in any part of the aerodrome, against acts of violence.

(3) A direction given under this section may be either of a general or of a specific character, and may require any measures specified in the direction to be taken at such time or within such period as may be so specified.

(4) A direction given under subsection (1) of this section to an operator of aircraft may be given so as to relate either to all the aircraft registered or operating in the United Kingdom of which at the time when the direction is given or at any subsequent time he is the operator or only to one or more such aircraft, or to a class of such aircraft, specified in the direction.

(5) A direction under this section—

(a) shall not require any search (whether of persons or of property), and

(b) shall not require the modification or alteration of any aircraft, or of any of its apparatus or equipment, or the installation of additional apparatus or equipment, or prohibit any aircraft from being caused or permitted to fly without some modification or alteration of the aircraft or its apparatus or equipment or the installation of additional apparatus or equipment.

(6) A direction may be given under this section to a person appearing to the Secretary of State to be about to become such an operator or manager as is mentioned in paragraph (a) or paragraph (b) of subsection (1) of this section; but a direction given to a person by virtue of this subsection shall not take effect until he becomes such an operator or manager, and, in relation to a direction so given, the preceding provisions of this section shall apply with the necessary modifications.

(7) The ownership of any property shall not be affected by reason only that it is placed on or under, or affixed to, any land in compliance with a direction under this section.

12.—(1) A direction under subsection (1) of section 9 or under section 10 of this Act may specify the minimum number of persons by whom any search to which the direction relates is to be carried out, the qualifications which persons carrying out any such search are to have, the manner in which any such search is to be carried out, and any apparatus, equipment or other aids to be used for the purpose of carrying out any such search.

Matters which may be included in directions under ss. 9 to 11.

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(2) A direction under subsection (2) of section 9 of this Act may specify the qualifications required to be had by persons carrying out any modifications or alterations, or the installation of any additional apparatus or equipment, to which the direction relates.

(3) Before specifying any qualifications in accordance with subsection (2) of this section, the Secretary of State shall inform the Civil Aviation Authority of the qualifications proposed to be specified, and shall take account of any advice given to him by that Authority with respect to those proposals.

(4) A direction under section 11 of this Act may specify—

(a) the minimum number of persons to be employed for the purposes of any measures required by the direction to be taken by an operator of aircraft or by the manager of an aerodrome, and the qualifications which persons employed for those purposes are to have, and

(b) any apparatus, equipment or other aids to be used for those purposes.

(5) In so far as a direction under any of the preceding provisions of this Part of this Act requires searches to be carried out, or other measures to be taken, by constables, the direction may require the person to whom it is given to use his best endeavours to secure that constables will be duly authorised to carry, and will carry, firearms when carrying out the searches or taking the measures in question.

(6) Nothing in subsections (1) to (5) of this section shall be construed as limiting the generality of any of the preceding provisions of this Part of this Act.

(7) In this section “qualifications” includes training and experience.

**Limitations
on scope of
directions
under ss. 9
to 11.**

13.—(1) Without prejudice to subsection (5) of section 12 of this Act, a direction shall not require or authorise any person to carry a firearm.

(2) A direction shall not have effect in relation to any aircraft used in military, customs or police service.

(3) A direction shall not have effect in relation to any aircraft of which the operator is the Government of a country outside the United Kingdom, or is a department or agency of such a Government, except at a time when any such aircraft is being used for the carriage of passengers or cargo for reward or is for the time being allocated by that Government, department or agency for such use.

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(4) A direction (except in so far as it requires any building or other works to be constructed, executed, altered, demolished or removed) shall not be construed as requiring or authorising the operator of any aircraft, or the manager of any aerodrome, or any person acting as the servant or agent of such an operator or manager, to do anything which, apart from the direction, would constitute an act of violence ; but nothing in this subsection shall restrict the use of such force as is reasonable in the circumstances (whether at the instance of such an operator or manager or otherwise) by a constable, or its use by any other person in the exercise of a power conferred by the following provisions of this Act.

(5) In so far as a direction requires anything to be done or not done at a place outside the United Kingdom—

- (a) it shall not have effect except in relation to aircraft registered in the United Kingdom, and
- (b) it shall not have effect so as to require anything to be done or not done in contravention of any provision of the law (whether civil or criminal) in force at that place, other than any such provision relating to breach of contract.

(6) In so far as a direction given to the manager of an aerodrome requires any building or other works to be constructed, executed, altered, demolished or removed on land outside the aerodrome, or requires any other measures to be taken on such land, the direction shall not confer on the manager of the aerodrome any rights as against a person having—

- (a) an interest in that land, or
- (b) a right to occupy that land, or
- (c) a right restrictive of its use ;

and accordingly the direction shall not be construed as requiring the manager of the aerodrome to do anything which would be actionable at the suit or instance of such a person in his capacity as a person having that interest or right.

(7) Nothing in this section shall be construed as derogating from any exemption or immunity of the Crown in relation to the provisions of this Part of this Act.

(8) In this section “ direction ” means a direction under section 9, section 10 or section 11 of this Act.

14.—(1) This section applies to any direction given under section 11 of this Act which—

- (a) requires a person to take measures consisting of or including the construction, execution, alteration, demolition or removal of a building or other works, and

Special provisions as to certain directions under s. 11.

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(b) does not contain a statement that the measures are urgently required and that accordingly the direction is to take effect immediately.

(2) At any time before the end of the period of thirty days beginning with the date on which a direction to which this section applies is given, the person to whom the direction is given may serve on the Secretary of State a notice in writing objecting to the direction, on the grounds that the measures specified in the direction, in so far as they relate to the construction, execution, alteration, demolition or removal of a building or other works,—

(a) are unnecessary and should be dispensed with, or

(b) are excessively onerous or inconvenient and should be modified in a manner specified in the notice.

(3) Where the person to whom such a direction is given serves a notice under subsection (2) of this section objecting to the direction, the Secretary of State shall consider the grounds of the objection and, if so required by the objector, shall afford to him an opportunity of appearing before, and being heard by, a person appointed by the Secretary of State for the purpose, and shall then serve on the objector a notice in writing either—

(a) confirming the direction as originally given, or

(b) confirming it subject to one or more modifications specified in the notice under this subsection, or

(c) withdrawing the direction ;

and the direction shall not take effect until it has been confirmed (with or without modifications) by a notice served under this subsection.

Operation of
directions
under Part II
in relation
to rights and
duties under
other laws.

15.—(1) The following provisions of this section, where they refer to a direction under any of the preceding provisions of this Part of this Act, shall be construed as referring to that direction as it has effect subject to any limitation imposed on its operation—

(a) by section 13 of this Act, or

(b) by any exemption or immunity of the Crown ;

and any reference in those provisions to compliance with such a direction shall be construed as a reference to compliance with it subject to any limitation so imposed.

(2) In so far as any such direction requires anything to be done or not done in the United Kingdom, the direction shall have effect notwithstanding anything contained in any contract (whether a United Kingdom contract or not) or contained in, or having effect by virtue of, any other Act or any rule of law ; and accordingly no proceedings (whether civil or criminal) shall lie

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against any person in any United Kingdom court by reason of anything done or not done by him or on his behalf in compliance with such a direction.

(3) In so far as such a direction requires anything to be done or not done at a place outside the United Kingdom, the direction shall have effect notwithstanding anything contained in any contract (whether a United Kingdom contract or not); and accordingly, where such a direction is inconsistent with anything in such a contract, it shall (without prejudice to any proceedings in a court other than a United Kingdom court) be construed as requiring compliance with the direction notwithstanding that compliance would be in breach of that contract.

(4) No proceedings for breach of contract shall lie against any person in a United Kingdom court by reason of anything done or not done by him or on his behalf at a place outside the United Kingdom in compliance with any such direction, if the contract in question is a United Kingdom contract.

(5) In this section "United Kingdom court" means a court exercising jurisdiction in any part of the United Kingdom under the law of the United Kingdom or of part of the United Kingdom, and "United Kingdom contract" means a contract which is either expressed to have effect in accordance with the law of the United Kingdom or of part of the United Kingdom or (not being so expressed) is a contract of which the proper law is the law of the United Kingdom or of part of the United Kingdom.

16.—(1) It shall be an offence for any person without lawful authority or reasonable excuse (the proof of which shall lie on him) to have with him—

Offences in relation to certain dangerous articles.

- (a) in any aircraft registered in the United Kingdom, whether at a time when the aircraft is in the United Kingdom or not, or
- (b) in any other aircraft at a time when it is in, or in flight over, the United Kingdom, or
- (c) in any part of an aerodrome in the United Kingdom, or
- (d) in any air navigation installation in the United Kingdom which does not form part of an aerodrome,

any article to which this section applies.

(2) This section applies to the following articles, that is to say—

- (a) any firearm, or any article having the appearance of being a firearm, whether capable of being discharged or not;
- (b) any explosive, any article manufactured or adapted (whether in the form of a bomb, grenade or otherwise) so as to have the appearance of being an explosive,

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whether it is capable of producing a practical effect by explosion or not, or any article marked or labelled so as to indicate that it is or contains an explosive; and

- (c) any article (not falling within either of the preceding paragraphs) made or adapted for use for causing injury to or incapacitating a person or for destroying or damaging property, or intended by the person having it with him for such use, whether by him or by any other person.

(3) For the purposes of this section a person who is for the time being in an aircraft, or in part of an aerodrome, shall be treated as having with him in the aircraft, or in that part of the aerodrome, as the case may be, an article to which this section applies if—

- (a) where he is in an aircraft, the article, or an article in which it is contained, is in the aircraft and has been caused (whether by him or by any other person) to be brought there as being, or as forming part of, his baggage on a flight in the aircraft or has been caused by him to be brought there as being, or as forming part of, any other property to be carried on such a flight, or
- (b) where he is in part of an aerodrome (otherwise than in an aircraft), the article, or an article in which it is contained, is in that or any other part of the aerodrome and has been caused (whether by him or by any other person) to be brought into the aerodrome as being, or as forming part of, his baggage on a flight from that aerodrome or has been caused by him to be brought there as being, or as forming part of, any other property to be carried on such a flight on which he is also to be carried,

notwithstanding that the circumstances may be such that (apart from this subsection) he would not be regarded as having the article with him in the aircraft or in a part of the aerodrome, as the case may be.

(4) Nothing in subsection (3) of this section shall be construed as limiting the circumstances in which a person would, apart from that subsection, be regarded as having an article with him as mentioned in subsection (1) of this section.

**Inspection of
aircraft and
aerodromes.**

17.—(1) For the purpose of enabling the Secretary of State to determine whether to give a direction to any person under any of the preceding provisions of this Part of this Act, or of ascertaining whether any such direction is being or has been complied with, any person authorised in writing by the Secretary of State (in this section referred to as an “authorised person”)

shall have power, on production (if required) of his credentials, to inspect—

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(a) any aircraft registered or operating in the United Kingdom, at a time when it is in the United Kingdom, or

(b) any part of any aerodrome in the United Kingdom.

(2) An authorised person inspecting an aircraft or any part of an aerodrome under subsection (1) of this section shall have power—

(a) to subject any property found by him in the aircraft (but not the aircraft itself or any apparatus or equipment installed in it) or, as the case may be, to subject that part of the aerodrome or any property found by him there, to such tests, or

(b) to require the operator of the aircraft, or the manager of the aerodrome, to furnish to him such information,

as the authorised person may consider necessary for the purpose for which the inspection is carried out.

(3) Subject to the next following subsection, an authorised person, for the purpose of exercising any power conferred on him by the preceding provisions of this section in relation to an aircraft or in relation to an aerodrome, shall have power—

(a) for the purpose of inspecting an aircraft, to enter it and to take all such steps as are necessary to detain it, or

(b) for the purpose of inspecting any part of an aerodrome, to enter any building or works in the aerodrome or enter upon any land in the aerodrome.

(4) The powers conferred by subsection (3) of this section shall not include power for an authorised person to use force for the purpose of entering any aircraft, building or works or entering upon any land.

18.—(1) Sections 8, 10, 11, 12, 13 and 17 of this Act shall have effect in relation to air navigation installations in the United Kingdom in accordance with the following provisions of this section.

Application of provisions of Part II to air navigation installations.

(2) In relation to any such air navigation installation which does not form part of an aerodrome, those sections shall have effect as if in them any reference to an aerodrome were a reference to such an air navigation installation and any reference to the manager of an aerodrome were a reference to the authority responsible for such an air navigation installation.

(3) Where an air navigation installation forms part of an aerodrome in the United Kingdom, those sections shall have

PART II effect as if in them any reference to an aerodrome were a reference either—

- (a) to an aerodrome, or
- (b) to an air navigation installation which forms part of an aerodrome, or
- (c) to so much of an aerodrome as does not consist of an air navigation installation ;

and accordingly a notice under section 8 or a direction under section 10 or section 11 of this Act may be served or given either in respect of the whole of the aerodrome, or in respect of the air navigation installation separately, or in respect of so much of the aerodrome as does not consist of an air navigation installation.

(4) For the purposes of the service of a notice or the giving of a direction under section 8, section 10 or section 11 of this Act as modified by subsection (3) of this section, where the notice is to be served or the direction given in respect of an air navigation installation separately, and for the purposes of the operation of section 13(6) of this Act in relation to a direction so given, any reference in any of those sections to the manager of the aerodrome shall be construed as a reference to any person who is either the manager of the aerodrome or the authority responsible for the air navigation installation.

(5) A direction under section 11 of this Act, as applied or modified by the preceding provisions of this section, may be given to the authority responsible for one or more air navigation installations so as to relate either—

- (a) to all air navigation installations in the United Kingdom for which it is responsible at the time when the direction is given or at any subsequent time, or
- (b) only to one or more such air navigation installations, or to a class of such air navigation installations, specified in the direction.

(6) In sections 14(1) and 15(1) of this Act any reference to a direction given under a provision therein mentioned shall be construed as including a reference to a direction given under that provision as applied or modified by the preceding provisions of this section.

(7) Notwithstanding anything in subsection (2)(a) of section 17 of this Act, a person inspecting an air navigation installation under that section (or under that section as applied or modified by the preceding provisions of this section) shall not be empowered thereby to test any apparatus or equipment which constitutes or forms part of the air navigation installation.

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SUPPLEMENTARY PROVISIONS

19.—(1) Where a constable has reasonable cause to suspect that a person about to embark on an aircraft in the United Kingdom, or a person on board such an aircraft, intends to commit, in relation to the aircraft, an offence under Part I of this Act or under the Hijacking Act 1971, the constable may prohibit him from travelling on board the aircraft; and for the purpose of enforcing that prohibition the constable—

Powers exercisable on suspicion of intended offence.
1971 c. 70.

- (a) may prevent him from embarking on the aircraft or, as the case may be, may remove him from the aircraft, and
- (b) may arrest him without warrant and detain him for so long as may be necessary for that purpose.

(2) Without prejudice to the preceding subsection, where a direction given under section 10 of this Act to the manager of an aerodrome is for the time being in force, then if a constable, or any other person specified in the direction in accordance with that section, has reasonable cause to suspect that an article to which section 16 of this Act applies is in, or may be brought into, any part of the aerodrome, he may, by virtue of this subsection and without a warrant, search any part of the aerodrome or any aircraft, vehicle, goods or other movable property of any description which, or any person who, is for the time being in any part of the aerodrome, and for that purpose—

- (a) may enter any building or works in the aerodrome, or enter upon any land in the aerodrome, if need be by force, and
- (b) may stop any such aircraft, vehicle, goods, property or person and detain it or him for so long as may be necessary for that purpose.

(3) Where a direction given under section 10 of this Act, as applied or modified by section 18 of this Act, is for the time being in force—

- (a) if it is a direction given in respect of an air navigation installation separately (whether that installation forms part of an aerodrome or not), subsection (2) of this section shall have effect in relation to that direction as if the air navigation installation were an aerodrome and, where the direction was given to the authority responsible for the air navigation installation, as if it had been given to the manager of that aerodrome;
- (b) if it is a direction given in respect of so much of an aerodrome as does not consist of an air navigation installation, subsection (2) of this section shall have

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effect in relation to that direction as if any air navigation installation comprised in the aerodrome did not form part of the aerodrome.

(4) Subsections (1) to (3) of this section shall have effect without prejudice to the operation, in relation to any offence under this Act or under the Hijacking Act 1971,—

1971 c. 70.

1967 c. 58.

(a) in England and Wales, of section 2 of the Criminal Law Act 1967 (which confers power to arrest without warrant) or of section 3 of that Act (use of force in making arrest, etc.), or

(b) in Scotland, of any rule of law relating to power to arrest without warrant, or

1967 c. 18.
(N.I.).

(c) in Northern Ireland, of section 2 or section 3 of the Criminal Law Act (Northern Ireland) 1967.

Penalties in connection with exercise of powers under Part II or under s. 19.

20.—(1) Any person who—

(a) refuses or without reasonable excuse fails to comply with a requirement imposed on him by a notice under section 8 of this Act, or with a requirement imposed on him under subsection (2)(b) of section 17 of this Act, or

(b) in furnishing any information so required, makes a statement which he knows to be false in a material particular, or recklessly makes a statement which is false in a material particular,

shall be guilty of an offence.

(2) Any person who refuses or fails to comply with a direction given to him under section 9 or section 10 of this Act shall be guilty of an offence.

(3) Any person to whom a direction is given under section 11 of this Act, and who refuses or without reasonable excuse fails to comply with the direction, shall be guilty of an offence.

(4) Any person who—

(a) wilfully obstructs or impedes a person acting in the exercise of a power conferred on him by or under section 17 or section 19 of this Act, or

(b) wilfully interferes with any building constructed or works executed on any land in compliance with a direction under section 11 of this Act or with anything installed on, under, over or across any land in compliance with such a direction,

shall be guilty of an offence.

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(5) In the preceding provisions of this section any reference to section 8, section 10 or section 11 or to any provision of section 17 of this Act shall be construed as including a reference to that section or provision as applied or modified by section 18 of this Act.

(6) A person guilty of an offence under section 16 of this Act shall be liable—

(a) on summary conviction, to a fine not exceeding £400 or to imprisonment for a term not exceeding three months or to both ;

(b) on conviction on indictment, to a fine or to imprisonment for a term not exceeding five years or to both,

(7) A person guilty of an offence under this section shall be liable—

(a) on summary conviction, to a fine not exceeding £400 ;

(b) on conviction on indictment, to a fine or to imprisonment for a term not exceeding two years or to both.

21.—(1) Where an offence under this Act which has been committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate, or any person who was purporting to act in any such capacity, he as well as the body corporate shall be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

(2) Where the affairs of a body corporate are managed by its members, subsection (1) of this section shall apply in relation to the acts and defaults of a member in connection with his functions of management as if he were a director of the body corporate.

22.—(1) The provisions of this section shall have effect where, in compliance with a direction under section 11 of this Act or under that section as applied or modified by section 18 of this Act, the manager of an aerodrome or the authority responsible for an air navigation installation takes any measures consisting of the construction, execution, alteration, demolition or removal of a building or other works on land either within or outside the aerodrome or that air navigation installation, as the case may be.

(2) If the value of any interest in that land to which a person is entitled is depreciated in consequence of the taking of those measures, or the person having such an interest suffers loss in consequence of them by being disturbed in his enjoyment of any of that land, he shall be entitled to compensation equal to the amount of the depreciation or loss.

Offences
by bodies
corporate.

Compensation
in respect
of certain
measures
taken under
Part II.

PART III

(3) If any land other than the land on which the measures are taken is injuriously affected by the taking of those measures, any person having an interest in that other land, who suffers loss in consequence of its being injuriously affected, shall be entitled to compensation equal to the amount of the loss.

(4) Any compensation to which a person is entitled under this section shall be payable to him by the person (whether being a manager of an aerodrome or the authority responsible for an air navigation installation) by whom the measures in question were taken.

(5) The provisions of the Schedule to this Act shall have effect for the purposes of this section ; and the preceding provisions of this section shall have effect subject to the provisions of that Schedule.

Reimbursement of expenses incurred for purposes to which Part II applies.

23.—(1) The Secretary of State with the approval of the Treasury may, out of moneys provided by Parliament, reimburse to any person who is—

- (a) the operator of one or more aircraft registered or operating in the United Kingdom, or
- (b) the manager of an aerodrome in the United Kingdom, or
- (c) the authority responsible for an air navigation installation in the United Kingdom,

the whole or part of any expenses which, for purposes to which Part II of this Act applies, have at any time on or after 1st June 1972 been, or may at any time after the commencement of this Act be, incurred by that person in relation to those aircraft or to that aerodrome or air navigation installation, as the case may be, whether (in the case of expenses incurred after the commencement of this Act) the expenses are incurred in consequence of a direction given under Part II of this Act or not.

(2) For the purposes of this section any expenses incurred in paying compensation under section 22 of this Act shall be treated as being expenses incurred as mentioned in the preceding subsection.

Annual report by Secretary of State as to notices and directions under Part II.

24.—(1) The Secretary of State shall, on or before 31st January in each year, lay before each House of Parliament a report stating the number of notices served by him under section 8 and the number of directions given by him under sections 9, 10 and 11 of this Act during the period of twelve months which expired with the preceding December.

(2) Each such report shall deal separately with notices served under section 8, directions given under section 9, directions given under section 10 and directions given under section 11 of this

Act, and, in relation to each of those matters, shall show separately—

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- (a) the number of notices or directions which, during the period to which the report relates, were served on or given to persons as being, or as appearing to the Secretary of State to be about to become, operators of aircraft ;
- (b) the number of notices or directions which during that period were served on or given to persons as being, or as appearing to the Secretary of State to be about to become, managers of aerodromes ; and
- (c) the number of notices or directions which during that period were served on or given to persons as being, or as appearing to the Secretary of State to be about to become, authorities responsible for air navigation installations.

(3) In this section any reference to section 8, section 10 or section 11 of this Act shall be construed as including a reference to that section as applied or modified by section 18 of this Act.

25. Any notice, direction or other document required or Service of authorised by any provision of this Act to be served on or given documents. to any person may be served or given—

- (a) by delivering it to him, or
- (b) by sending it to him by post at his usual or last-known residence or place of business, whether in the United Kingdom or elsewhere, or
- (c) in the case of a body corporate, by delivering it to the secretary, clerk or similar officer of the body corporate at its registered or principal office in the United Kingdom (or, if it has no office in the United Kingdom, at its principal office, wherever it may be) or sending it by post to the secretary, clerk or similar officer of that body corporate at that office.

26.—(1) In this Act, except in so far as the context otherwise Interpretation. requires, the following expressions have the meanings hereby assigned to them, that is to say—

“ aerodrome ” means the aggregate of the land, buildings and works comprised in an aerodrome as defined by section 28(3) of the Civil Aviation Act 1968 and (if 1968 c. 61. and so far as not comprised in an aerodrome as so defined) any land, building or works situated within the boundaries of an area designated, by an order made by the Secretary of State which is for the time being in force, as constituting the area of an aerodrome for the purposes of this Act ;

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“air navigation installation” means any building, works, apparatus or equipment used wholly or mainly for the purpose of assisting air traffic control or as an aid to air navigation, together with any land contiguous or adjacent to any such building, works, apparatus or equipment and used wholly or mainly for purposes connected therewith;

“aircraft registered or operating in the United Kingdom” means any aircraft which is either—

(a) an aircraft registered in the United Kingdom,

or

(b) an aircraft not so registered which is for the time being allocated for use on flights which (otherwise than in exceptional circumstances) include landing at or taking off from one or more aerodromes in the United Kingdom;

“article” includes any substance, whether in solid or liquid form or in the form of a gas or vapour;

“constable” includes any person having the powers and privileges of a constable;

“explosive” means any article manufactured for the purpose of producing a practical effect by explosion, or intended for that purpose by a person having the article with him;

“firearm” includes an airgun or air pistol;

“manager”, in relation to an aerodrome, means the person (whether being the British Airports Authority, the Civil Aviation Authority, a local authority or any other person) by whom the aerodrome is managed;

“military service” includes naval and air force service;

“measures” (without prejudice to the generality of that expression) includes the construction, execution, alteration, demolition or removal of buildings or other works and also includes the institution or modification, and the supervision and enforcement, of any practice or procedure;

1971 c. 75.

“operator” has the same meaning as in the Civil Aviation Act 1971;

“property” includes any land, buildings or works, any aircraft or vehicle and any baggage, cargo or other article of any description.

(2) For the purposes of this Act—

(a) in the case of an air navigation installation provided by, or used wholly or mainly by, the Civil Aviation Authority, that Authority, and

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- (b) in the case of any other air navigation installation, the manager of an aerodrome by whom it is provided, or by whom it is wholly or mainly used,

shall be taken to be the authority responsible for that air navigation installation.

(3) For the purposes of this Act—

- (a) the period during which an aircraft is in flight shall be deemed to include any period from the moment when all its external doors are closed following embarkation until the moment when any such door is opened for disembarkation, and, in the case of a forced landing, any period until the competent authorities take over responsibility for the aircraft and for persons and property on board ; and
- (b) an aircraft shall be taken to be in service during the whole of the period which begins with the pre-flight preparation of the aircraft for a flight and ends twenty-four hours after the aircraft lands having completed that flight, and also at any time (not falling within that period) while, in accordance with the preceding paragraph, the aircraft is in flight,

and anything done on board an aircraft while in flight over any part of the United Kingdom shall be treated as done in that part of the United Kingdom.

(4) For the purposes of this Act the territorial waters adjacent to any part of the United Kingdom shall be treated as included in that part of the United Kingdom.

(5) Any power to make an order under subsection (1) of this section shall be exercisable by statutory instrument ; and any statutory instrument whereby any such order is made shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(6) Any power to make an order under subsection (1) of this section, or to give a direction under any provision of this Act, shall be construed as including power to revoke or vary any such order or direction by a further order or direction made under that subsection, or given under that provision, as the case may be.

(7) Subject to section 33 of the Interpretation Act 1889 (which 1889 c. 63. relates to offences under two or more laws), sections 1 to 3 of this Act shall not be construed as—

- (a) conferring a right of action in any civil proceedings in respect of any contravention of this Act, or

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(b) derogating from any right of action or other remedy (whether civil or criminal) in proceedings instituted otherwise than under this Act.

(8) Except in so far as the context otherwise requires, any reference in this Act to an enactment shall be construed as a reference to that enactment as amended or extended by or under any other enactment, including this Act.

(9) In the application of this Act to Northern Ireland, any reference to an enactment of the Parliament of Northern Ireland, or to an enactment which that Parliament has power to amend,—

(a) shall be construed as including a reference to any enactment of the Parliament of Northern Ireland passed after this Act and re-enacting the said enactment with or without modifications, and

(b) shall, except in so far as the context otherwise requires, be construed as a reference to that enactment as amended by any enactment, whether passed before or after this Act, and as including a reference thereto as extended or applied by or under any other enactment, including this Act,

and “enactment”, except in subsection (8) of this section, includes an enactment of the Parliament of Northern Ireland.

Application to
Channel
Islands, Isle
of Man and
other
countries.

1870 c. 52.
1967 c. 68.

27.—(1) Sections 17 and 22 of the Extradition Act 1870 and sections 16 and 17 of the Fugitive Offenders Act 1967 (application to Channel Islands, Isle of Man and United Kingdom dependencies) shall extend respectively to the provisions of this Act amending those Acts.

(2) Her Majesty may by Order in Council make provision for extending any of the other provisions of this Act, with such exceptions, adaptations or modifications as may be specified in the Order, to any of the Channel Islands, the Isle of Man, any colony, other than a colony for whose external relations a country other than the United Kingdom is responsible, or any country outside Her Majesty's dominions in which Her Majesty has jurisdiction in right of Her Majesty's Government in the United Kingdom.

(3) An Order in Council under this section may be varied or revoked by a subsequent Order in Council.

Short title and
commence-
ment.

28.—(1) This Act may be cited as the Protection of Aircraft Act 1973.

(2) This Act, except the provisions specified in the next following subsection, shall come into force on the passing of this Act.

(3) Sections 1 to 5 and subsections (1) and (3) of section 6 of this Act shall come into force on such day as Her Majesty may by Order in Council appoint.

SCHEDULE

Section 22.

PROVISIONS RELATING TO COMPENSATION

1. This Schedule applies to compensation under section 22 of this Act (in this Schedule referred to as "the relevant section").

2. No compensation to which this Schedule applies shall be payable unless the person to whom it is payable in accordance with the relevant section (or in accordance with regulations made under the following provisions of this Schedule) serves on the manager of the aerodrome by whom the measures in question were taken a notice in writing claiming compensation under that section, and that notice is served before the end of the period of two years from the completion of the measures.

3. In relation to any measures taken by the manager of an aerodrome on land outside the aerodrome, any reference in the relevant section to a direction, or to compliance with a direction, shall be construed as if subsection (6) of section 13 of this Act were omitted.

4. In calculating value for any of the purposes of the relevant section—

- (a) rules (2) to (4) of the rules set out in section 5 of the Land Compensation Act 1961 shall apply with the 1961 c. 33. necessary modifications, and
- (b) if the interest to be valued is subject to a mortgage, it shall be treated as if it were not subject to the mortgage.

5. Regulations made by the Secretary of State by statutory instrument may make provision—

- (a) requiring compensation to which this Schedule applies, in such cases as may be specified in the regulations, to be paid to a person other than the person entitled to it in accordance with the relevant section ;
- (b) as to the application of any compensation to which this Schedule applies, or any part of it, in cases where the right to claim compensation is exercisable by reference to an interest in land which is subject to a mortgage, or to a rentcharge, or to the trusts of a settlement, or, in Scotland, to a feuduty or ground annual or to the purposes of a trust, or which was so subject at a time specified in the regulations ; or
- (c) as to any assumptions to be made, or matters to be taken into or left out of account, for the purpose of assessing any compensation to which this Schedule applies.

6. Any statutory instrument whereby any regulations are made under paragraph 5 of this Schedule shall be subject to annulment in pursuance of a resolution of either House of Parliament.

7. Any dispute arising under the relevant section or under this Schedule, whether as to the right to any compensation or as to

SCH. the amount of any compensation or otherwise, shall be referred to and determined by the Lands Tribunal.

8. For the purposes of the application of paragraphs 2 to 7 of this Schedule to compensation in respect of measures taken by the authority responsible for an air navigation installation, references in those paragraphs to an aerodrome and to the manager of an aerodrome shall be construed respectively as references to an air navigation installation and to the authority responsible for it.

9. In the application of this Schedule to Scotland—

1961 c. 33.

(a) the reference in paragraph 4(a) to section 5 of the Land Compensation Act 1961 shall be construed as a reference to section 12 of the Land Compensation (Scotland) Act 1963, and

1963 c. 51.

(b) the reference in paragraph 7 to the Lands Tribunal shall be construed as a reference to the Lands Tribunal for Scotland.

10. In the application of this Schedule to Northern Ireland—

1919 c. 57.

(a) the reference in paragraph 4(a) to section 5 of the Land Compensation Act 1961 shall be construed as a reference to section 2 of the Acquisition of Land (Assessment of Compensation) Act 1919 (as substituted by section 13(1) of the Lands Tribunal and Compensation Act (Northern Ireland) 1964), and

1964 c. 29.
(N.I.)

(b) the reference in paragraph 7 to the Lands Tribunal shall be construed as a reference to the Lands Tribunal for Northern Ireland.

11. In this Schedule “mortgage” includes any charge or lien on any property for securing money or money’s worth, and any heritable security within the meaning of section 9(8) of the Conveyancing and Feudal Reform (Scotland) Act 1970.

1970 c. 35.